

**ORDERS ON
MAINTAINABILITY**

The D.H.R has filed the present petition to execute the decree passed in O.S. No.3279/2009. The said suit was decreed on 06.12.2010. The present petition was filed on 24.07.2023. It shows that the present petition is filed after lapse of 12 years 7 months and 18 days. As per Article 136 of Limitation Act, the execution petition has to be filed within 12 years from the date of decree enforceable. As per the judgment and decree passed in O.S. No. 3279/2009, the decree can be enforceable from 07.03.2010. But the D.H.R has not filed the present petition within the period of limitation, therefore the decree passed in O.S. No.3279/2009 cannot be executed. Accordingly, the petition is dismissed as barred by limitation.

**XXIX A.C.C & S.J.,Bengaluru
(12.12.2025)**